

The Kandla Port Trust (Authorization of Pilots) Regulations, 2013

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The Kandla Port Trust (Authorization of Pilots) Regulations, 2013

UNION OF INDIA

India

The Kandla Port Trust (Authorization of Pilots) Regulations, 2013

Rule THE-KANDLA-PORT-TRUST-AUTHORIZATION-OF-PILOTS-REGULATIONS-2013 of 2013

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The Kandla Port Trust (Authorization of Pilots) Regulations, 2013

Published vide Notification, No. G.S.R. 90(E), 14th February, 2013

Ministry of Shipping

(Ports Wing)

G.S.R. 90(E). - In exercise of the powers conferred by Sub-section (1) of Section 124, read with Sub-section (1) of Section 132 of the Major Port Trusts Act, 1963 (

38 of 1963

), the Central Government hereby approves the Kandla Port Trust (Authorisation of Pilots) Regulations, 2013 made by the Board of Trustees for the Port of Kandla and set out in the Schedule annexed to this Notification.

2.

The said Regulations shall come into force from the date of publication in the Gazette of India.

Schedule

In exercise of the powers conferred by Section 28 of the Major Port Trusts Act, 1963 (38 of 1963

) and in supersession of the Kandla Port (Authorisation of Pilots) Regulations 1964, the Board of Trustees of the Port of Kandla, hereby makes the following regulations, namely -

Part-I 1. Short title and commencement.

(1)

These Regulations may be called the Kandla Port Trust (Authorization of Pilots) Regulations, 2013.

(2)

These Regulations shall come into force from the date of publication in the official Gazette.

2. Definitions.

- In these regulations, unless the context otherwise requires-

(a)

"Board", "Chairman" and "Deputy Chairman" shall have the same meaning as in the Major Port Trusts Act, 1963 (38 of 1963

);

(b)

"Control Station" means the station through which the direction of management of pilotage is vested;

(c)

"Deputy Conservator" means the Officer in whom the direction and the management of Pilotage are vested;

(d)

"Harbour Master" means the Officer appointed to perform such duties as may, from time to time, be assigned to him by the Deputy Conservator;

(e)

"Limits of Compulsory Pilotage Waters" mean the limits defined under sub-section [2] of Section 4 of the Indian Ports Act, 1908 (15 of 1908

);

(f)

"Outer Tuna Buoy" means the name of the fairway buoy at the entry point of incoming Vessels. Pilotage is compulsory and the Pilots board the incoming vessels and disembark from outgoing vessels at pilotage point near Outer Tuna Buoy;

(g)

"Master" or "Master of the Vessel" includes any officer (except a Pilot or Harbour Master) having overall command or charge of the vessel and is required to keep all equipment required towards the safety of the vessel, in readiness, which includes anchoring and steering of the vessel;

(h)

"Pilot" means an Officer licensed under these regulations to perform pilotage duty of guiding the ships to and from the Port in an advisory capacity and works directly under Harbour Master and Deputy Conservator;

(i)

"Pilot Licence" means Licence issued to a person to carry out pilotage of vessels within the port limits of the Port.

(j)

"Port" means the Port of Kandla;

Part-II Licensing - Qualifications and Conditions

3.

Qualifications of candidates.

- [1] A candidate for Pilot Licence shall:-

[a] be an Indian national;

[b] produce certificates of good character and sobriety;

[c] be in possession of a:-

[i] Certificate of Competency as Master [Foreign Going] granted by the Government of India or its equivalent and have preferably experience of six months as First Mate on a foreign - going ship; or

[ii] Certificate as Dredge Master issued by the Directorate General of Shipping and have preferably experience of two years as a Dredge Master; or

[iii] have successfully completed training as Pilot under the In-house Training of Pilots at the Port, as may be decided by the Board from time to time in consultation with the Director General of Shipping;

[d] obtain a certificate of physical fitness from such medical authority as may be prescribed by the Chairman for the purpose; and

[e] unless the Chairman otherwise determines, serve a period of probationary training of not less than six months and successfully pass the prescribed examination.

Provided that the period of probationary training may be extended beyond six months for sufficient and valid reasons such as:-

(i)

candidate is unable to complete required phases of training due to his own illness, or has to proceed on leave for sufficient and valid reasons or due to any national emergency etc;

(ii)

in the interest of the Port or Government of India, the candidate is required to be allotted some other duties [with prior agreement] such as Dredging Master, Berthing Master, etc., and is thus unable to complete his training requirement;

(iii)

candidate for valid reasons is unable to pass his examination during the stipulated period of twelve months and in the view of the Chairman, needs to be given a fair chance to pass the examination;

(iv)

in case of candidates belonging to SC/ST, special extra training or guidance is deemed necessary;

Provided further that the period of probationary training may be curtailed under the following circumstances:

[i] if the candidate has been a Pilot in the said Port Trust and has rejoined subsequently;

[ii] if in future modern technology such as a simulator is used for training.

[2] Position in Station, description and flags and signal of identification of Pilots launch or boat. -

(1)

The Pilot will board incoming vessels and disembark from outgoing Vessels by Pilot launch at Outer Tuna Buoy.

(2)

The launch or boat will have the word 'Pilot' amidships on each side.

(3)

The Pilot launch when on station, shall -

(a)

during the day time, exhibit a red and white flag, the upper horizontal half of which shall be white and the lower horizontal will be red, and

(b)

during night, exhibit lights in accordance with the rules or law for the time being in force.

[3] The Pilot Station and Shore Station. - The Harbour Master through Signal Station shall monitor the boarding and disembarking of Pilots and shall exercise control over them.

[4] Harbour Master's control over the Pilot. - The Harbour Master shall have control over Pilots in pilotage charge of vessels while entering or leaving the Port or mooring or berthing or under thing at any anchorage or berth in the Port. The Pilots shall not leave the headquarter without prior permission from the Harbour Master or an Officer acting on his behalf. While seeking permission to leave the headquarters the Pilot shall give the address and the telephone number on which he can be contacted, if required.

4.

Pilot Licence.

(1)

All Pilots shall hold Pilot Licence to perform the duties of a Pilot for the Port of Kandla. This Licence for restricted pilotage or full pilotage, subject to the sanction of the Central Government, shall be issued under the signature of Chairman and sealed with the common seal of the Board and revocable by the Chairman.

(2)

A Pilot severing his connection from the Port shall forthwith surrender his Pilot Licence to the Deputy Conservator.

(3)

The Pilot Licence may be revoked by the Chairman in circumstances such as:

(a)

proven misconduct and/or misconduct under the conduct and discipline rules;

(b)

professional misconduct; (means willful default or departure from the Regulations concerning the pilotage in force from time to time);

(c)

shipping casualties (accidents) where professional competence is questioned or negligence proved after enquiry into the accident;

(d)

where formal court of enquiry instituted into marine casualty holds Pilots responsible for an accident;

(e)

on cessation from service if the licence is not surrendered as required under regulation (2) above; and

(f)

on being medically found unsuitable for Pilotage jobs.

(4)

A Pilot shall retain Licence on subsequent promotions in the Pilotage services upto the post of Deputy Conservator and continue to pilot vessels as per the requirement.

5.

Conditions for joining the Pilot Service in Port.

- A person shall not be appointed as a Pilot until and unless he satisfies the Chairman that he fulfills the following conditions, namely:-

(a)

The conditions of eligibility laid down in regulation 14(b) and 14(c) of the Kandla Port Employees (Recruitment, Seniority and Promotion) Regulations 1964;

(b)

On the date of appointment as a Probationary Pilot he is of an age not below 25 years but not exceeding 35 years unless otherwise relaxed by the Chairman; and

(c)

That he possesses the qualifications specified under Regulation 3.

Part-III Training and Examination

6.

Training.

(1)

During the period of training, probationary pilot will be instructed in duties of a Pilot, the lights, the landmarks, buoyage, etc. of the Harbour, the handling of ships within the pilotage waters of the Port, berthing or unberthing of vessels within the dock basins, handling the port trust owned suction dredger and operating her dredging equipments, etc.

(a)

On completion of the training, the probationary pilot may, subject to the approval of Deputy Conservator, apply to be examined as to his qualifications to pilot ships;

Provided that the period of Training be extended beyond three months but not more than six months for sufficient and valid reasons such as :-

(i)

candidate is unable to complete required phases of training due to his own illness, or has to proceed on leave for sufficient and valid reasons or due to any national emergency, etc;

(ii)

candidate for valid reasons is unable to pass his examination during the stipulated period and in the view of Chairman, needs to be given a fair chance to pass examination;

Provided further that the training during the period of probation may be curtailed under the following circumstances:

(i)

If the Pilot on probation has been a Pilot in Kandla Port Trust or any other Major Port in the country and has rejoined Kandla Port Trust subsequently;

(ii)

if in future modern technology such as a simulator is used for training.

(b)

A candidate for a Restricted Pilotage Licence shall comply with the requirements under (a) and unless the Board determines, serve a period of training of not less than one month or till such time he attends a minimum of thirty Acts of Pilotage involving crossing the channel whichever is later.

(c)

On completion of the training, the probationary Pilot may, if recommended by the Harbour Master and subject to the approval of Deputy Conservator, apply to be examined for grant of restricted pilotage licence.

(2)

No fee for Pilot licence is recovered as the Probationary Pilot is an employee of the Port Trust and whenever the Pilot leaves the job from the Port Trust the licence so issued to him is surrendered.

(3)

The candidate selected for appointment, as a Pilot shall execute the Bond to serve Kandla Port for a minimum period of five years on completion of Probationary period of two years as per prescribed format at Appendix-A attached to these Regulations. The indemnity amount should be equal to the cost of training plus the amount being paid to the probationary Pilot as salary or stipend.

7.

Subjects of Examination.

- The examination shall include the following subjects, namely;

? regulations and rules framed for navigating in the Harbour and approaches to the dock and piers;

? course and distance between any two places;

? rise and set of tides;

? depth and character of soundings;

? anchorages, rocks, shoals and other dangers, landmarks, buoys, beacons and lights within the Port;

? management of ships and steamers; how to bring them to anchor and to keep them clear of their anchors in a tideway;

? to moor and unmoor and get underway;

? to handle a vessel under all conditions; and

? such other subjects as may be determined by the Examination Committee.

8.

Examination Committee.

- The examination of the Probationary Pilot shall be conducted by an Examination Committee composed of as follows:

(i)

The Deputy Conservator

Chairman

(ii)

The Harbour Master

Member

(iii)

A Master of a Foreign Going Ship

Member

On completion of prescribed training, the probationary Pilot may apply to be examined for grant of restricted pilotage licence to the Deputy Conservator, subject to recommendation by at least two senior Pilots and Harbour Master regarding capability of the probationary Pilot to pilot vessels.

9.

Failure to pass Examination.

(1)

In the event of a probationary Pilot failing to pass the specified examination within twelve months of his appointment, he will be liable to be discharged.

(2)

In the event of a probationary Pilot after completion of his training period fails the examination, he will be given an extension of Training period and be permitted to appear in the examination a second time. In case his performance is not found satisfactory in the second examination also, his services as probationary Pilot will be terminated.

10.

Issue of Licence.

(1)

On successful completion of the examination, the Pilot shall be issued the Pilot Licence under Regulation 4 above.

(2)

The fee for a Pilot's Licence, and for renewal thereof in case of mutilation or loss, shall be prescribed by the Board from time to time.

11.

Classification of Pilots.

(1)

A Pilot on being licensed will be permitted to pilot Vessels as follows:-

(a)

during the first six months, attached to the berthing service and perform berthing or unberthing of vessels (except dangerous petroleum tankers, men-of-war and ships loaded with explosives) not exceeding 11000 tonnes gross register during day light hours only;

(b)

during the next six months, vessels (except dangerous petroleum tankers, men-of-war and ships loaded with explosives) not exceeding 16000 tonnes gross register during day light hours only;

(c)

during the next six months vessels (except dangerous petroleum tankers, men-of-war and ships loaded with explosives) of 12000 tonnes gross register during hours of darkness;

(d)

during the next six months, after passing a departmental examination conducted by the Deputy Conservator and Harbour Master, vessels of unrestricted tonnage, type and class during day light hours and vessels upto 16000 tonnes gross register of any type or class during hours of darkness.

(e)

Thereafter, on completion of six months, full tonnage or open tonnage i.e. all vessels without restriction during day and night.

Note:- (i) Transfer of Pilot from one class to the next higher class will be on the recommendation of the Harbour Master and subject to the approval of the Deputy Conservator.

(ii)

The period of three months or six months as specified above shall be extended by the period of leave, if any, availed by the Pilot.

Explanation. - For the purpose of above rules, the "hour of darkness" means half an hour after sunset to half an hour before sunrise.

Part-IV Shore Station - Monitoring and Control

12.

Duties of Pilots.

- The duties of a Pilot shall include -

(a)

Piloting of Vessels in and out of the harbour, berthing, unberthing and shifting of vessels;

(b)

Take command of dredgers as and when necessary and Port crafts or tugs when proceeding beyond Port limits and also in case of contingencies like strike, etc. by the workers, on the instructions of Deputy Conservator;

(c)

To attend and monitor the pull back operations during pilotage at Single Buoy Mooring (SBM) throughout the Vessel's Stay.

13.

Dock Masters to do duties at Shore Station.

- The Dock Masters at various shore stations shall perform their duties, in rotation for such periods as may from time to time be ordered by the Deputy Conservator. The Dock Master at the control station shall perform such duties, including control of the Vessel Traffic Service Station, as may be specified by the Deputy Conservator.

14.

The Pilot Station and the Shore Station.

- The Harbour Master at the Control Station shall monitor the boarding and disembarking of Master Pilots or Pilots and shall exercise control over them.

15.

Operational Control of Pilots.

- The Harbour Master shall have the control over Master Pilots and Pilots in pilotage charge of vessels while entering or leaving the port, mooring or unmooring and berthing or un-berthing at any anchorage, berth, dock within the port.

16.

Boarding inward bound - vessels, etc.

- The Harbour Master at the Control Station shall ensure that the Master Pilot or Pilot on turn for boarding inwards are duly boarded upon inbound vessels requiring Pilots. Also ensure that Master Pilot or Pilot are disembarked from outbound vessels.

17.

Power to direct Pilots to take charge of a Vessel of higher tonnage in certain circumstances.

- The Deputy Conservator or Harbour Master may, if necessary, direct a Pilot to pilot a vessel exceeding in tonnage the Vessels which he is qualified for under regulation 12 to Pilot. In every such case, the Deputy Conservator or Harbour Master shall forthwith send a report in writing to the Chairman stating the reasons which in his opinion necessitated such action.

18.

Harbour Master to Regulate Attendance of Pilots on Vessels.

- Pilots on shore duty shall be detailed under the supervision of the Harbour Master to vessels requiring their services and a list showing the rotation in which Pilots, having regard to their respective classes, are to be allotted to such vessels shall be drawn up and kept in the office of the Deputy Conservator or Harbour Master. The allocation of Pilots for individual movements in accordance with the list drawn up in the Deputy Conservator's office and any adjustments necessitated by changes or cancellations of allocations of Pilots shall be attended to by the signal station.

Part-V Duties of Pilots

19.

Pilots to obey the order of the Authority.

- A Pilot shall obey and execute all orders and regulations given or issued by the Chairman, the Deputy Chairman, the Deputy Conservator and or the Harbour Master. He shall also obey all orders given by Deputy Conservator or Harbour Master relating to berthing, unberthing, shifting and towing of vessels under his charge.

20.

Pilots Behaviour.

(1)

A Pilot shall at all times exercise strict sobriety. He shall be in charge of the vessel throughout the time and use his utmost care and diligence for her safety and the safety of other vessels and property. He shall not lay by the vessel aground without a written order from the owner or Officer in command.

(2)

A Pilot is an employee of the Board and governed by the Kandla Port Employees (Recruitment, Seniority and Promotion) Regulations for all his service matters and, therefore, in the event of any misconduct or misbehaviour while in service liable to disciplinary proceedings under Kandla Port Employees (Classification, Control and Appeal) Regulations as amended from time to time.

21.

Pilots to obtain certificate of service performed by them.

- A Pilot shall on boarding the vessel handover the arrival or departure report to the Master who shall enter therein all

the required particulars over his signature. The arrival report shall be duly filled in and returned to the Pilot before the vessel reaches middle ground the departure report before reaching Outer Tuna Buoy. Transporting and anchoring certificates shall be filled by the Pilot and presented to the Master for signature when the duties of Pilot are completed.

22.

Pilots to go on board vessels in good time.

- A pilot about to take charge of a vessel which is outward bound, or which is about to be moved from the berth in which she is lying, shall go on board and report himself to the officer in command at the time appointed, i.e. in sufficient time for her to be moved out to sea or to her destination.

23.

Pilots to see that vessel and her equipment are in order.

- A pilot before taking charge of an inward or outward bound vessel or shifting of vessel shall enquire from the Master of the Vessel whether the steering gear is connected and in proper working order and direct that both the anchors be ready for letting go.

24.

Pilot to acquaint with the movement of vessels.

- All Pilots prior to boarding the vessel, acquaint themselves with the movement of vessels in the harbour and the Pilot on board in each of them.

25.

Commencement of Pilot's outward duties.

- The duties of a Pilot in regard to outward bound vessel shall commence on boarding the vessels at any wharf, pier, jetty or anchorage.

26.

Termination of Pilot's outward duties.

- The duties of a Pilot in regard to an outward bound vessel shall cease when he has piloted the vessel upto the limits of the compulsory pilotage waters (Outer Tuna Buoy).

27.

Commencement of Pilot's Inward duties.

- The duties of a Pilot in regard to an inward bound vessel shall commence when he boards the vessel at the pilot station within the compulsory pilotage limits of the Port (Outer Tuna Buoy).

28.

Termination of Pilot's inward duties.

- The duties of a Pilot in regard to any inward bound vessel shall cease at any wharf, pier, berth or jetty or anchorage when the vessel is safely moored, berthed and secured or anchored. However, in case of Single Buoy Mooring (SBM) operation, the Pilot will stay on board to monitor the pull back operation throughout the vessel's stay.

29.

Moving of Vessel.

- No Pilot shall move or direct the moving of any vessel within the Port from one position to another unless the following conditions are fulfilled -

(i)

If the vessel is underway, the Master shall be on board;

(ii)

if the Master leaves the vessel before the movement is completed, the Pilot shall direct the vessel to be anchored in such safe position as may be most easily reached by the vessel and shall not give directions to proceed with the moving until the return of the Master to the vessel;

(iii)

throughout the moving, the number of officers and crew on board and available for duty shall be sufficient to perform any duty which may be required, and if the Pilot on board considers that the number is not sufficient, he shall call the Master's attention to the Port rules and refuse to proceed with the moving unless the Master first signs a declaration under his own hand expressly assuming entire responsibility.

Explanation: In this Regulation, the expression "Master" shall include the first or other officer duly authorized to act for the Master in the event of the latter being incapacitated from performing the duties of his office.

30.

Pilots to report on landing.

- On landing, after piloting a vessel inward and or transporting a vessel in the stream, or returning from the pilot vessel, a Pilot shall report without delay to the signal station the time of his landing ashore by entering his name on the roster kept for this purpose, for further duty.

31.

Pilots not to bring vessels into dock when the signal is against him.

- A Pilot shall not bring a vessel into dock or alongside a berth unless cleared to do so by the shore station.

32.

Pilots when on duty to carry with them their licence, etc.

- A Pilot when on duty shall always have with him an official Tide Table for the Port, a copy of the Port rules, pilotage regulations presently in force and his licence.

33.

Loss of Licence.

- A pilot losing his licence shall forthwith give notice thereof to the Deputy Conservator, stating the circumstances in which the licence was lost, and the Deputy Conservator shall unless he is satisfied that the loss has been caused by the Pilot's misconduct, issue the Pilot a temporary licence pending the grant of a duplicate licence by the Chairman.

34.

Pilots to give information of any alterations in navigational marks, etc.

- A pilot who has observed any alteration in the depth of the channels, or has noticed that any buoys, beacons or light vessels have been driven away, broken down, damaged or shifted from position, or has become aware of any circumstances likely to affect the safety of navigation shall forthwith send a detailed report thereof in writing to the Deputy Conservator.

35.

Pilots to report casualties.

- A Pilot, whenever, any accident has happened to or been caused by a vessel while in his charge, shall as soon as possible and not later than twenty four hours of the accident, report the facts in writing in the form prescribed for the purpose as per Appendix-B, to the Deputy Conservator.

36.

Pilots to ascertain quarantine and security compliance.

- A Pilot on boarding an inward bound vessel, shall -

(a)

ascertain whether there is, or has been during the voyage, any infectious disease on board. If there is, or has been, and the disease is of a serious nature as laid down in the quarantine rules, he shall anchor the vessel, hoist the quarantine signal and carry out the instructions contained in the said quarantine rules in this respect; and

(b)

ascertain the vessel's present draught and see that both anchors are clear to be let go; see that the national Ensign is hoisted and the flags denoting the name of the vessel and any other signals, as required by Port rules from time to time, are hoisted in such a manner as to be clearly seen from the Port signal station.

Part-VI Administrative Procedures

37.

Log Book to be kept at control (Signal) station.

- The incharge of control station shall maintain a logbook containing such particulars as may be specified by the Deputy Conservator. He shall also forward the logbook to the Deputy Conservator for inspection once in a week.

38.

Senior Pilots to give instructions to subordinate Pilots, Junior Pilots and Probationary Pilots.

- Harbour Master shall instruct the subordinate Pilots to assist Junior Pilots and Probationary Pilots in all branches of a Pilot's duty.

39.

Pilots giving evidence.

- A Pilot shall not attend to give evidence in any trial or enquiry to which he is not a party, unless he is under subpoena,

without the prior permission of the Deputy Conservator and a Pilot under subpoena to give evidence shall at once report the fact in writing to the Deputy Conservator.

40.

Pilot's examination of charts.

- All Pilots shall attend frequently at the office of the Deputy Conservator or Harbour Master to examine the latest plans and charts of the port and other information concerning the Port.

41.

Pilot's uniform.

- Pilots shall wear the prescribed uniform while on duty and they shall abide by the normal discipline and decorum expected from officers in uniform when dealing with their controlling officers.

42.

Pilot to be provided with proper food and resting accommodation.

- The Master of a Vessel shall provide the Pilot with reasonable accommodation, if necessary breakfast, lunch and dinner, as the case may be, if the Vessel is at anchor in the harbour and at Single Buoy Mooring (SBM) in the case of Vadinar, failing which the Master of the respective Vessel shall pay compensation at the rate of Rs. 200/- for any of the meals missed by the Pilot.

Part-VII General

43.

Interpretation.

- If any question arises relating to the interpretation of these regulations, it shall be referred to the Chairman:-

Provided that any Pilot may within sixty days of the receipt of the order of the Chairman make a representation to the Board and the Board may make such orders thereof as it deem fit.

44.

Repeal and Savings.

- On commencement of these regulations, Kandla Port [Authorization of Pilots] Regulations 1964 stands repealed:

Provided that - [a] such repeal shall not affect the previous operation of the said Regulations or orders or practices or anything done or actions taken thereunder; and

[b] any proceeding under the said Regulations pending at the commencement of these regulations shall be conducted and disposed of, so far as may be feasible, in accordance with these regulations.

Appendix-A

Indemnity Bond

(To Be Executed by Pilots)

Know all men by this presents that I, _____ resident of _____ in the District of _____ at present employed as a probationary Pilot in the Port of Kandla, do hereby bind myself and my heirs, executors, and administrators to pay to the board on demand a sum equivalent to the cost of Training plus the amount of Salary or Stipend on account of my having been placed for training as per sub-regulation (3) of Regulation 6 of Kandla Port (Authorisation of Pilots) Regulations, 2013.

And whereas for the better protection of the Board I have agreed to execute this bond with such condition as hereunder is written.

Now the condition of the above written obligation is such that in the event of my resignation or leaving service before serving Kandla Port Trust for a minimum period of five years on completion of my probationary period of two years or in the event of my removal or dismissal from service for any kind of misconduct during the prescribed period of the said five years, I shall forthwith pay to the Board or as may be directed by the board in demand, the said sum equivalent to the cost of Training plus the amount of Salary or Stipend on account of my having placed for training as aforesaid.

And upon my making such payment, the above written obligation shall be void and of no effect, otherwise, it shall be and remain in full force and virtue.

Dated this _____ day of _____ on two thousand _____

Signed and delivered by _____ in the presence of witness.

(Signature of the Probationary Pilot)

1. _____

2. _____

For and on behalf of the Board accepted by:

Deputy Conservator

Kandla Port Trust

Common seal of the Board of Trustees of the

Port of Kandla affixed in the presence of

(Secretary)

Kandla Port Trust

Appendix-B

Pilot's Report of Accident

(To be filled in and sent on shore immediately)

To

The Deputy Conservator,

Kandla Port Trust.

1.

Name of Vessel

2.

Nature of accident

3.

Date & time of its occurrence

4.

State of the weather, direction and force of wind and tide

5.

Position of vessel, and all-round bearing of known objects

6.

Nature of the ground

7.

Cause of accident

8.

Means used to get the vessel afloat or clear

9.

Length of time vessel lay aground, or in collision and if she so remains at the time of forwarding this report

10.

If further means or appliances are required and if so, what they are

11.

Any other particulars

N.B. In addition to this report, the Pilot must send a written detailed report within 24 hours

Date: _____

Pilot's Signature _____

I have perused and do concur/not concur in the particulars of the accident above reported which are correct/not correct as stated by the Port.

Signature _____

Master of the Vessel _____

Remarks of the Master of the Vessel

Government of India

Ministry of Health & Family Welfare

Maritime Declaration of Health

(To be completed and submitted to the competent authorities by the Masters of the vessel arriving from the foreign ports)

Submitted at the port of _____ Date _____

Name of the Ship or Inland navigation vessel _____
Registration No./IMO No. _____
Arriving from _____ Sailing to _____
Nationality (Flag) of the vessel _____ Master's Name _____
Gross Tonnage _____ Tonnage inland navigation vessel _____
Valid Sanitation Control Exemption/Control Certificate carried on board? Yes/No _____
Issued at _____ date _____
Re-Inspection required? Yes/No _____
Has ship/vessel visited an affected area identified by the World Health Organization? Yes/No _____
Port and date of visit _____
List ports of call from the commencement of voyage with date of departure, or within past thirty days, whichever is shorter.

Upon request of the competent authority at the port of arrival, list crew members, passengers or other persons who have joined ship/vessel since international voyage began or within past thirty days, whichever is shorter, including all ports/countries visited in this period (add additional names to the attached schedule).

(1)
Name _____ joined from (i) _____ (2) _____ (3) _____

(2)
Name _____ joined from (i) _____ (2) _____ (3) _____

(3)
Name _____ joined from (i) _____ (2) _____ (3) _____

Number of crew members on board _____

Number of passengers on board _____

Health Questions

(1)
Has any person died on board during the voyage otherwise than as a result of accident? Yes/No

(2)
If there on board or has there been during international voyage any case of disease which you suspect to be of an Infectious nature? Yes/No, If yes, state particulars in attached schedule.

(3)
Has the total numbers of ill passengers during the voyage been greater than normal/excepted? Yes/No, How many ill persons? _____

(4)
Is there any ill persons on board now? Yes/No, If yes, state particulars in attached schedule.

(5)
Was a medical practitioner consulted? Yes/No, If yes, state particulars of medical treatment or advice provided in attached schedule.

(6)
Are you aware of any condition on board which may lead to infection or spread of disease? Yes/No, If yes, state particulars in attached schedule.

(7)
Has any sanitary measures (e.g. quarantine, isolation, disinfection or decontamination) been applied on board? Yes/No, If yes, state particulars in attached schedule.

(8)
Has any stoways been found on board? Yes/No, If yes, where did they join the ship (if shown)? _____

(9)
If there a sick animal or pet on board? Yes/No

Note: In the absence of a surgeon, the master should regard the following symptoms as grounds for suspecting the existence a disease of an infectious nature:

(a)

fever, persisting for several days or accompanied by (i) prostration (ii) decreased consciousness (iii) glandular swelling (iv) Jaundice (v) cough or shortness of breath (vi) unusual bleeding or (vii) paralysis.

(b)

With or without fever (i) any acute skin rash or eruption (ii) severe vomiting (other than sea sickness) (ii) severe diarrhea; or (iv) recurrent convulsion

I hereby declare the particulars and answers to the questions given in this Declaration of Health (including the schedule) are true and correct to the best of my knowledge and belief.

Signed _____

Master

Countersigned _____

Ship's Surgeon (if carried)

Date _____

Attached Schedule to the Maritime Declaration of Health

Name

Class or Rating

Age

Sex

Nationality

Port, Date joined ship/ vessel

Nature of Illness

Date of onset of symptoms

Report to a port medical officer

Disposal of case*

Drugs medicines or other treatment given to patient

Comments

*State (1) whether the person recovered, is still ill or died; and (2) whether the person is still on board, was evacuated (including the name of the Port or Airport) or was buried at sea.

Related AI tags, queries and research notes

Translation